



POLICE DEPARTMENT

November 1, 2021

-----X
In the Matter of the Charges and Specifications :

- against - :

Sergeant Edward Mullins :

Tax Registry No. 876768 :

Det. Boro Brooklyn South Oper. :

Case No.

2019-21495

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Samuel Yee, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Hugo Ortega, Esq.
Tanner & Ortega, LLP
299 Broadway, Suite 1700
New York, NY 10007

To:

HONORABLE DERMOT F. SHEA
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Sergeant Edward Mullins, assigned to Detective Borough Brooklyn South Operations, on or about May 31, 2020, improperly divulged or posted a portion of a Department arrest report on a social media site.

P.G. 203-10, Page 1,
Paragraphs 3, 4 or 5

PUBLIC CONTACT –
PROHIBITED CONDUCT
GENERAL REGULATIONS

2. Said Sergeant Edward Mullins, assigned to Detective Borough Brooklyn South Operations, on or about and between May 31, 2020 and February 15, 2021, having become aware of a possible allegation of misconduct against another Member of the Service, wrongfully failed to report said allegation to the Internal Affairs Bureau, as required.

P.G. 207-21, Pages 1 and 2,
Paragraph 1

ALLEGATIONS OF CORRUPTION OR
OTHER MISCONDUCT AGAINST
MEMBERS OF THE SERVICE
COMPLAINTS

3. Said Sergeant Edward Mullins, assigned to Detective Borough Brooklyn South Operations, on or about May 31, 2020, wrongfully engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Sergeant improperly disclosed personal information of a person including home address, date of birth, or identification card number on a social media site.

P.G. 203-10, Page 1,
Paragraphs 3, 4 or 5

PUBLIC CONTACT –
PROHIBITED CONDUCT
GENERAL REGULATIONS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 8 and October 27, 2021. Respondent, through his counsel¹, entered a plea of Not Guilty to the subject charges. The Department called Lieutenant Timothy Magliente as its witness. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is

¹ Mr. Ortega entered the case after Respondent's original counsel moved to be relieved based upon a conflict of interest.

available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondent Guilty of Specifications 1 and 3; I find him Not Guilty of Specification 2. I recommend that he forfeit 30 vacation days.

ANALYSIS

Motion to Dismiss

Respondent has moved for dismissal of the three specifications of misconduct in *Disciplinary Case No. 21495-2019* on the ground that each allegation purports to discipline him under the Patrol Guide for engaging in protected speech under the First Amendment. The Department Advocate opposes his motion. For the reasons set forth below, Respondent's Motion to Dismiss is denied.

In Specification 1, Respondent is charged with posting information contained in an arrest report, which was originally posted by Shawn Cohen, a journalist with the Daily Mail. In Specification 2, Respondent is charged with failing to notify the Internal Affairs Bureau regarding an allegation of misconduct against another Member of Service. In Specification 3, Respondent is charged with improperly disclosing personal information on a social media site.

Executive Order 75 of 1973

Respondent's assertion that Executive Order 75 of 1973 effectively immunizes him from being disciplined relies on an overbroad interpretation of the Order. The original Executive Order was issued on March 22, 1973, and later amended on January 21, 1974 (Court Ex. 1).

The thrust of the Order is to permit employees of city agencies who have been selected for union positions to devote themselves full-time to union business while remaining employees of their respective agencies. Contrary to Respondent's argument, the Order does not mean that

he is at all times a private citizen for disciplinary purposes. Respondent has not cited to any legal authority for this proposition.

In *Matter of Patrolmen's Benevolent Ass'n of the City of New York v. City of New York*, 119 AD3d 1, 3 [1st Dept. 2014]), the court held that while the Order established "[t]he right to be released from their job duties to perform union or joint labor-management activities," that right was not unconditional. "Section 4(10) of EO 75 (1973) provides: 'Employees assigned on a full-time or part-time basis or granted leave without pay pursuant to this Order shall at all times conduct themselves in a responsible manner'" (*Matter of Patrolmen's Benevolent Ass'n of the City of New York v. City of New York*, 119 A.D.3d 1, 4-5 [1st Dept. 2014]; *rev'd as moot*, 26 N.Y.3d 1044 [2015]).

In that case, three borough-wide PBA representatives for police officers in the Bronx were indicted in a ticket-fixing scheme. Pursuant to Civil Service Law § 75 (3-a), these representatives were suspended without pay for 30 days, after which they were restored to modified duty. The Office of Labor Relations (OLR) rescinded their release time certificates, then offered to issue new certificates for three employees of the union's choice. The union declined the offer and filed a group grievance with the OLR. After the grievance was denied, the three former union officials filed a request for arbitration with the New York City Office of Collective Bargaining in an attempt to reinstate the certificates. At the same time, they also sought a preliminary injunction pending arbitration (*Matter of Patrolmen's Benevolent Ass'n of the City of New York v. City of New York*, 119 A.D.3d 1, 3-4).

The court went on to hold that since Section 4(10) of the Executive Order imposed the requirement that "all employees on leave conduct themselves in a responsible manner, the only

reasonable inference is that there are consequences for noncompliance” (*Patrolmen’s Benevolent Ass’n v. City of New York*, 119 A.D.3d at 5).

Executive Order 75, therefore, provides no absolute refuge from internal discipline, where warranted by the circumstances.

Protected Speech

Respondent claims that as the head of a police union, his speech is protected by the First Amendment when he speaks on a matter of public concern. He also argues that the act of attempting to discipline him is intended to have a chilling effect upon his willingness to engage in public advocacy on behalf of union interests. Finally, he argues that he cannot be disciplined for reposting the information from the arrest report because once the journalist published it, it was no longer private information.

First, Respondent’s assertion that the conduct alleged in Specifications 1, 2 and 3 (*i.e.*, disseminating personal information on a social media site and failing to report the misconduct of a Member of the Service) is protected by the First Amendment relies upon a misapprehension of the law applied to news organizations, not public employees. The cases Respondent offers as legal support for this proposition are all distinguishable on their facts from this case.

In *Bartnicki v. Vopper*, 532 U.S. 514 (2001), the Supreme Court held that the First Amendment prohibited a civil suit for damages against a media organization for publication of the contents of a private conversation, which was unlawfully obtained, on a matter of public interest. Similarly, in *Florida Star v. B.J.F.*, 491 U.S. 524 (1989), the Supreme Court held that the First Amendment protected a news organization which published the name of an alleged rape victim, obtained from a police report, from civil liability. This principle of press freedom was first articulated in the seminal case of *New York Times Co. v. United States*, 403 U.S. 713 (1971),

where the Court upheld the right of the press to publish information of great public concern obtained from documents stolen by a third party.

Despite the clear application of the aforementioned precedent to news organizations, Respondent has not made the case that they should apply to a union official who, according to Respondent, republishes that which has already placed into the public domain, notwithstanding the obligation placed on UMOS not to release such documents. Respondent cites the case of *Hanneman v. Brier*, 528 F.2d 750 (7th Cir. 1976) as support for the proposition that the First Amendment prohibits the sanctioning of a police officer for distribution of a letter confirming the existence of an already publicized internal police investigation.

In that case, the Milwaukee Journal published a front-page story disclosing that the Milwaukee Police Department had conducted an internal investigation into the political activities of the Milwaukee Professional Policemen's Protective Association (MPPPA) and whether its members had violated a police department regulation prohibiting police officers from using the influence of their office for political purposes. The day after the story was published, the MPPPA distributed a letter to the mayor, the city council, the city's labor negotiator and the state labor board, confirming that officers of the MPPPA had been questioned by agents of the city in connection with their political activities and urged the elected officials to protect these officers from "pressures being exerted by the City and its agents." The distribution of this letter led to another internal investigation and the officers were charged with breaching the confidentiality of the Department's internal affairs in violation of a department rule (*Hanneman*, 528 F.2d at 751-752).

First, the Court held that the free speech rights of public employees should be analyzed under the test articulated in *Pickering v. Board of Education*, 391 U.S. 563 (1968)². In *Pickering*, the Supreme Court established a balancing test to resolving the competing state and individual interests: (1) does the speech relate to a matter of general public concern; and (2) whether “the fact of employment is only tangentially and insubstantially involved in the subject matter of the public communication” (*Pickering*, 391 U.S. at 574).

The *Hanneman* court held that “the Department’s general interest in discipline alone, however, does not outweigh the individual and public interest in the subject of plaintiffs’ . . . letter [citation omitted]. Once the matter was placed in the public eye, plaintiffs, as officers of the certified collective bargaining representative of nonsupervisory policemen, had a legitimate interest in bringing any improper anti-union conduct by the chief of police in connection with the now-publicized investigation to the attention of influential government officials outside the police department” (*Hanneman*, 528 F.2d at 755).

As a Seventh Circuit decision, *Hanneman* has no precedential authority in New York. It has been cited only twice in this circuit, in two federal District Court cases dealing with discipline of police officers for disclosing the details of confidential proceedings³. Moreover,

² As discussed below, the *Pickering* test is still valid but has been refined by more recent precedent (see *Garcetti v. Ceballos*, 547 U.S. 410 [2006]).

³ See *Shelton Police Union v. Vocolla*, 125 F.Supp.2d 604 (D. Ct. 2001)(Head of police union was issued a letter of reprimand for making public statements regarding the police chief’s manipulation of personnel regulations to hire his son and the chief’s racist remarks during a meeting with a subordinate. District Court found that the police department’s interest in effective functioning was outweighed by the public’s interest in receiving information about suspect practices on the police force); *Haurilak v. Kelley*, 425 F.Supp. 626 (D. Ct. 1977)(Court upheld right of detective, demoted in favor of another employee who had allegedly received a poorer score on the merit test, to complain to the chief of police, the city administrative assistant, members of the board of aldermen, and the chairmen of the Democratic and Republican town committees. The complaint letters concerned the operation of the town’s merit system and the employee had a genuine interest in speaking out on a matter of public concern relating to his employment. Regulation under which he was disciplined was overbroad and could cause employees to refrain from constitutionally protected speech and expression).

any guidance that 1976 decision may provide is limited by more recent Supreme Court precedent addressing the First Amendment rights of public employees.

The Supreme Court has most recently addressed the free speech rights of public employees in *Garcetti v. Ceballos*, 547 U.S. 410 (2006). In that case, the Court held that when public employees make statements pursuant to their official duties, such employees are not speaking as private citizens for First Amendment purposes, allowing managerial discipline for such speech (*Garcetti*, 547 U.S. at 421). The Court reaffirmed the general principle that the First Amendment protects a public employee's right, in certain circumstances, to speak as a citizen addressing matters of public concern (*see e.g., Pickering v. Board of Education, supra; Connick v. Myers*, 461 U.S. 138 [1983]). "Official communications have official consequences, creating a need for substantive consistency and clarity. Supervisors must ensure that their employees' communications are accurate, demonstrate sound judgement and promote the employer's mission" (*Garcetti*, 547 U.S. at 422-423). The government's interest in functioning as effectively as possible has also been found to justify restrictions on employee speech (*see e.g., Waters v. Churchill*, 511 U.S. 661, 671 [1994][plurality opinion]). "When a citizen enters government service, the citizen by necessity must accept certain limitations on his or her freedom" (*Garcetti*, 547 U.S. at 418).

More recently, in *Montero v. City of Yonkers*, 890 F.3d 386 (2d Cir. 2018), the U.S. Court of Appeals for the Second Circuit declined to decide categorically that when a person speaks in his capacity as a union member, he speaks as a private citizen for First Amendment purposes (*Montero*, 890 F.3d at 399). That determination requires a fact-specific analysis. The Court further held that even if such individual were found to be speaking as a citizen, it does not necessarily follow that his speech was constitutionally protected; they would also have to

establish that the speech at issue was on a matter of public concern (*Id.*, citing *Garcetti*, 547 U.S. at 418). “Whether speech is on a matter of public concern is a question of law, and ‘is to be answered by the court after examining the content, form and context of a given statement, as revealed by the whole record’” (*Montero*, 890 F.3d at 399, citing *Jackler v. Byrne*, 658 F.3d 225, 235 [2d Cir. 2011]).

I find that the republishing of an arrest report, the release of which is proscribed by Department regulations, does not constitute a matter of public concern for First Amendment purposes. Even if the fact of a particular individual’s arrest may be newsworthy, the release of the arrest report concerning that individual’s arrest cannot be bootstrapped to bring it within the protection of the First Amendment

Based upon the foregoing analysis, Respondent’s Motion to Dismiss is DENIED.

Relief of Counsel

Trial commenced in this case on September 8, 2021. The case was adjourned until October 27, 2021, due to a medical emergency experienced by one of Respondent’s counsel during the first trial date. Prior to the resumption of trial, counsel for Respondent moved to be relieved due to a conflict of interest (Court Exhibits I, II III). The Tribunal granted counsel’s request on October 14, 2021. On October 21, 2021, successor counsel filed a Notice of Appearance on Respondent’s behalf.

The Trial

Lieutenant Timothy Magliente testified⁴ that in late May-early June 2020, he was assigned to an investigation commenced by the Chief of Internal Affairs when he learned that the

⁴ Lieutenant Magliente had completed his direct testimony but had not yet been cross-examined when the Tribunal adjourned until October 27, 2021.

Sergeants Benevolent Association (SBA) had tweeted⁵ an arrest report of the Arrestee⁶ (T. 32-33). As a part of his investigation, Lieutenant Magliente obtained a copy of the arrest report, dated May 30, 2020 (Dept. Ex. 1). He also obtained copies of the Twitter post from the SBA account which published the arrest report (T. 41, 44-45; Dept. Exs. 2, 2A). Lieutenant Magliente testified further that during his official Department interview, Respondent admitted to reposting the report (T. 40-41, 47, 105-106). A visual examination of the posted arrest report shows the Arrestee's residence address, New York State driver's license identification number and date of birth (T. 47-48; Dept. Ex. 2A).

The parties stipulated that a reporter, Shawn Cohen, had posted the arrest report on his Twitter account at approximately 2159 hours. I find that at some time between 2159 hours and 2224 hours, Respondent sent a tweet from the SBA account, which republished the arrest report image contained in Cohen's post⁷ (T. 86, 88). A second SBA tweet was sent at 2225 hours (Dept. Ex. 2B). The second SBA tweet contained a second version of the arrest report from which the personal information was redacted (*Id.*).

During his Department interview, Respondent was shown a copy of a New York Times article regarding the first SBA tweet; when he was asked if the statements attributed to him in the article were true, Respondent stated that they were (T. 62-63, 105-106; Dept. Ex. 3). During the same Departmental interview, Respondent's counsel offered a copy of a Twitter post in which Shawn Cohen, of the Daily Mail, posted the same arrest report of the Arrestee (T. 63-64; Dept.

⁵ I take judicial notice that the act of tweeting refers to either a user issuing an original message, or republishing another user's message, on the Twitter social media platform.

⁶ The arrestee is the Mayor's adult child, whose name is known to the Tribunal. Since the identity is not at issue in this proceeding, the Arrestee will be referred to with that generic description.

⁷ While the parties proffered a stipulation that the Respondent's original tweet from the SBA account was sent at 2225 hours, there is no time stamp on Department Exhibit 2. Department Exhibit 2B, however, does bear a time stamp of 2225 hours. Since there is no dispute that Respondent sent the tweet in Department Exhibit 2, or that he did so after seeing the Cohen post, the Tribunal will find that Department Exhibit 2 was sent at some time between 2159 hours and 2224 hours.

Ex. 4). Lieutenant Magliente testified that during his investigation, he reviewed three other news articles, each of which reported upon the SBA tweeting the Arrestee's arrest report (T. 64-65; Dept. Ex. 5). He also testified that he interviewed personnel from the office of the Deputy Commissioner for Public Information and they confirmed that that office did not release the arrest report (T. 82). Lieutenant Magliente did not discover any evidence to suggest that it was Respondent who provided the arrest report to Cohen (T. 91). He did not attempt to interview Cohen because of his status as a member of the press (T. 95-96). Lieutenant Magliente testified that he was familiar with the call logs of the Internal Affairs Bureau regarding the publishing of the Arrestee's arrest report; Respondent did not report any allegation of alleged misconduct in that regard (T. 74-75).

On cross-examination, Lieutenant Magliente testified that during his GO-15, Respondent did not deny sending the SBA tweet containing an image of the arrest report, previously posted to Twitter by Cohen, when confronted with the evidence of the SBA tweet (T. 86). Upon further questioning by the Tribunal, he clarified that Respondent, during the course of his Department interview, eventually came to admit that he had had re-posted the same information first tweeted by Cohen (T. 105-106).

Respondent testified that he was appointed to this Department in 1982 and served in various patrol and investigative assignments until 2002, when he became the president of the Sergeants Benevolent Association (T. 110-111). Based upon that responsibility, he was relieved of police duties under the terms of the Mayor's Executive Order 75 of 1973 (T. 111). He explained that he remains on the NYPD payroll while performing his union duties as part of the collective bargaining agreement (T. 111-112).

Respondent testified that he did not deny tweeting the arrest information obtained from Shawn Cohen's tweet regarding the arrest of the Arrestee on May 31, 2020 (T. 112). According to Respondent, at that time, the City of New York had experienced weeks and months of demonstrations, some of them violent, causing property damage and harming police officers (T. 112-113). He described police patrol cars being firebombed and police officers being pelted with rocks, bricks and bottles (*Id.*). Respondent characterized the situation as being "under attack in this City and nationwide, but specifically this City" (T. 113).

According to Respondent, members of the SBA, and of this Department, sought additional resources through the chain of command, specifically requesting the deployment of mounted units, but were "held back" while police officers were being injured (T. 113-114). He testified that he never received an answer for why the additional resources were not provided but he believed the reasons were political (T. 114). Respondent expressed the opinion that "the politicians in this City and the Mayor in this City were holding the police back from actually stopping the riots" (*Id.*).

Respondent testified that on May 31, 2020, he became aware of a post, from Shawn Cohen of the Daily Mail, by scrolling through the SBA Twitter account (T. 114-115). He characterized Cohen's post as "major news . . . It was a belief that never before that [sic] the Mayor's child got arrested in the middle of riots in the City of New York. You know, it was something that I believe was of public interest and more importantly the interest of the men and women of the NYPD who are out being pelted by bottles and rock[sic] and Molotov cocktails" (T. 115, 118-119). Respondent claimed that DCPI had furnished Cohen with the information contained in his post because, "Being the mayor's daughter, that's news worthy information.

Why would the DCPI not put that information out and publish it to a well-known media outlet?" (T. 115-116, 119-120).

Respondent testified that he did not alter the information posted by Cohen in any way and claimed to be unaware that Cohen's post contained an image of the Arrestee's arrest report (T. 116). He claimed further that he only learned that the arrest report had been included in Cohen's post when the SBA Twitter account was shut down and he was notified by the provider that they had posted personal information (*Id.*, 117). Respondent testified that he did not believe he was publishing confidential information because "it was published in the news media. If you look at today's paper, there's stories in there from this Department DCPI. How are we to know that DCPI did not release that information? There's no mechanism in place" (T. 119-120).

Respondent testified that at no time between May 31, 2020 and February 15, 2021, did he become aware that a Member of Service had possibly committed misconduct related to the Cohen post; he claimed that he "firmly believed that it was released by DCPI, which would therefore, make it an authorized piece of information. If someone in DCPI made a mistake of releasing it, that's not up to me to decide" (T. 120-121). Respondent testified further that he "believed" he sent a second tweet from the SBA account regarding the Arrestee's arrest; this tweet, however, contained a redacted version of the Arrestee's arrest report (T. 122-123). He clarified that he did not specifically recall sending the tweet but acknowledged that he could have done so (T. 123).

I credit Lieutenant Magliente's testimony as forthright, logical and credible. He is a disinterested witness in this matter and testified in accordance with his assigned investigative duties.

I find Respondent to be a generally truthful witness but I am mindful that he has an interest in the outcome of this proceeding. His testimony generally aligned with the undisputed evidence in this case but, in some instances, his testimony regarding what he thought and believed at the time of the alleged misconduct was uncorroborated. I do not find his testimony in that regard to be persuasive.

Specification 1: Improper Posting of Arrest Report

Specification 3: Improperly Disclosing Personal Information

I find that the Department has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent improperly posted a portion of a Department arrest report on a social media site.

In his February 17, 2021, official Department interview, as well as during his in-court testimony, Respondent admitted that he posted the May 31, 2020, tweet to the SBA Twitter account, which contained the arrest report, in evidence as part of Department Exhibit 2 (T. 47, 105-106; Dept. Ex. 2). Respondent testified that he saw a post from reporter Shawn Cohen discussing the Arrestee's arrest, then reposted it on the SBA Twitter account (T. 115; Dept. Ex. 4). There is no dispute that the arrest report in Department Exhibit 2 is a Department arrest report and that the Cohen post contained an image of the Arrestee's arrest report. The release of such information by a member of Service is prohibited by Patrol Guide procedure 212-77.

I find unpersuasive Respondent's implausible and self-serving assertion that he was unaware that Cohen's posting contained the arrest report of the Arrestee, given Respondent's 20 years of experience as a patrol officer and supervisor with this Department prior to becoming SBA president.

I further find that the Department has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent improperly disclosed the Arrestee's personal

information to a social media site, including the Arrestee's home address, date of birth, and driver's license identification number.

As discussed above concerning Specification 1, Respondent admitted, in his February 17, 2021, official Department interview, and during his in-court testimony, that he re-posted the arrest information from Cohen's May 31, 2020, tweet, which included the arrest report, to the SBA Twitter account (T. 47, 105-106, 115; Dept. Ex. 2). The aforementioned arrest report contained the Arrestee's home address, date of birth, and New York state driver's license identification number (T. 47-48; Dept. Ex. 2, 2A).

"Personal information" has been generally defined as any information which can be used to identify an individual (Public Officers Law § 92 [name, number, mark or other identifier]; New York Labor Law § 203-d ["personal identifying information" includes social security number, home address or telephone number, personal electronic email address, Internet identification name or password, parents; surname prior to marriage, or drivers' license number]; Uniform Civil Rules for the Supreme and County Court, 22 NYCRR § 202.5 (1)(iii) ["confidential personal information" includes the date of an individual's birth, except the year thereof]).

The First Amendment does not insulate a UMOS from discipline for releasing an arrest report in violation of Department policy. I further find that Respondent was not speaking as a private citizen for First Amendment purposes when he posted the tweet in Department Exhibit 2. While the arrest of a Mayor's adult child may well be a matter of public concern, the arrest report, which contained her personal information, was not. In fact, Respondent's posted comments concerning that arrest are not at issue here.

Respondent has argued that he cannot be disciplined for republishing the Arrestee's private information because it had already been disclosed by Shawn Cohen by the time Respondent posted his tweet to the SBA account. This purported defense lacks merit: the fact that a journalist acquired a police report through undetermined means does not absolve Respondent from his obligations to abide by the provisions of the Patrol Guide, which proscribes the release of such documents by Members of Service.

Similarly, whether or not the public had general knowledge about the Arrestee's address is also not a defense to this charge. Even assuming, for the sake of argument, that it was, Respondent's disclosure of the Arrestee's date of birth and driver's license identification number each constitute wrongful acts sufficient to prove the misconduct alleged in this specification.

Good Order and Discipline

I further find that Respondent's act of publishing private information concerning the Arrestee, as charged in Specifications 1 and 3, was contrary to the good order, discipline, and efficiency of this Department. He chose to use the personal information contained in an improperly acquired arrest report to make a political point with the Mayor. Respondent claimed in his testimony that the purpose of his tweet was to inform the public of a possible explanation for the Mayor's refusal to authorize more aggressive enforcement tactics for police officers to deal with protesters. The plain language of the tweet accuses the Mayor of prohibiting such tactics because he chose to side with police reform protesters, of which the Arrestee was one.

Contrary to his arguments, Respondent is not being disciplined because he spoke out against the Mayor. He is also not being disciplined because he publicized the Mayor's adult child's arrest. Respondent is being disciplined because he republished an arrest report, containing private information, in violation of the Patrol Guide.

While Respondent, in his role as president of the Sergeants Benevolent Association, had the right to advocate for his members, the means he used to do so exceeded the bounds of legitimate debate. He weaponized personal information obtained in the regular course of providing police services, which the Department has a legal obligation to safeguard once it is in its possession.

Based upon the foregoing, I find Respondent Guilty of Specifications 1 and 3.

Specification 2: Failure to Report Allegation of Misconduct

I find that the Department has failed to meet its burden of proof by a preponderance of the credible, relevant evidence that Respondent, having become aware of a possible allegation of misconduct against another Member of the Service, wrongfully failed to report that allegation to the Internal Affairs Bureau, as he was required to do.

Patrol Guide procedure 207-21 requires Members of Service to telephone the Internal Affairs Bureau Command Center “[u]pon observing, or becoming aware of corruption or other misconduct or upon receiving an allegation of corruption or other misconduct involving a member of the service” (P.G. 207-21[1]).

It is undisputed that Respondent never made a call to the Internal Affairs Bureau to report that someone had made an unauthorized disclosure of a completed arrest report form (T. 74-75). According to Lieutenant Magliente’s testimony, which I credit, he never developed evidence indicating that Respondent provided the arrest report to Shawn Cohen (T. 91).

While Respondent’s assertion that he believed someone in the Deputy Commissioner for Public Information office had released the arrest report is speculative, and certainly self-serving, his professed belief was not implausible. I find that the circumstances present in this case do not trigger the obligation set forth in Patrol Guide procedure 207-21.

Based upon the foregoing, I find Respondent Not Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Disciplinary Guidelines"), considered all relevant facts and circumstances, including any aggravating and mitigating factors established in the record. Respondent's employment history also was examined (*See* 38 RCNY § 15-07). Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum. Respondent has a formal disciplinary history which is detailed in that memorandum.

Respondent, who was appointed to the Department on January 25, 1982, has been found guilty of (1) republishing an arrest report to a social media site; and (2) posting private information contained in an arrest report to a social media site. The Department Advocate has recommended the loss of 30 penalty days. Even though I have found Respondent Not Guilty of Specification 2, I nevertheless concur with their recommendation.

The presumptive penalty for improperly disseminating a Department report is 20 penalty days: the mitigated penalty is 10 penalty days and the aggravated penalty is 30 penalty days. While there is no presumptive penalty for conduct prejudicial to the good order and efficiency of the Department, the penalty range runs from a mitigated penalty of training to an aggravated penalty of termination.

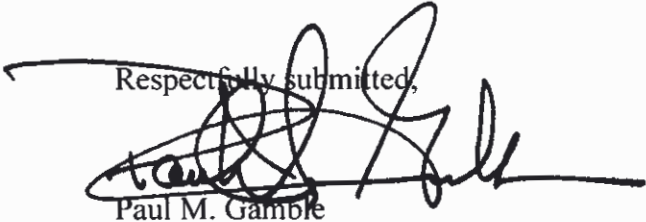
I find that Respondent's misconduct is aggravated by its potentially adverse impact upon this Department with regard to its mission, reputation, credibility and relationship with the community, as well as the impact upon public trust.

Respondent's misconduct occurred against the backdrop of last summer's police reform protests. As an advocate for the Sergeants Benevolent Association, he had the responsibility to speak out for the interests of his membership during a particularly challenging time in this City. The evidence in this case establishes that Respondent misused his public platform to republish an arrest report containing personal information; his act degraded his purported advocacy to the level of blood sport, where any means of achieving the SBA's goals became permissible. What would be clear misconduct for any other Member of Service is not ennobled by substituting the head of a police union as the alleged transgressor. I give no credence to Respondent's argument that he is being unfairly singled out for discipline in order to chill his speech.

I further find that his rank as a sergeant, and his leadership position among other supervisors of his rank, are aggravating factors warranting a more severe penalty.

Based upon the entirety of the record in this case, I therefore recommend that Respondent forfeit 30 vacation days.

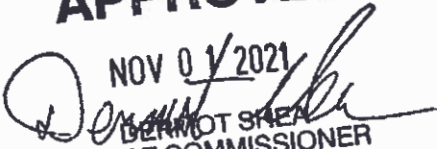
Respectfully submitted,


Paul M. Gamble

Assistant Deputy Commissioner Trials

APPROVED

NOV 01 2021


DERMOT SHEA
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
SERGEANT EDWARD MULLINS
TAX REGISTRY NO. 876768
DISCIPLINARY CASE NO. 2019-21495

Respondent was appointed to the Department on January 25, 1982. On his three most recent annual performance evaluations, he received 4.5 overall ratings of “Extremely Competent/Highly Competent” for 2017, 2018 and 2019. He has been awarded two medals for Meritorious Police Duty and three medals for Excellent Police Duty.

In 1987, Respondent forfeited 25 vacation days involving an off-duty incident where he punched an individual in the face and threw a bottle, striking a second individual.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials